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**JUDGMENT SHEET
IN THE PUNJAB SUBORDINATE JUDICIARY
SERVICE TRIBUNAL LAHORE
JUDICIAL DEPARTMENT**

Service Appeal No.13 of 2004.

Muhammad Shabbir Ahmed Minhas

Versus

Lahore High Court, Lahore through Registrar etc.

J U D G M E N T

Date of hearing: 19.11.2021.
Appellant by: Mr. Tallat Farooq Shaikh, Advocate.
Respondent No.1 by: Mr. Iftikhar Ahmad Khan, Advocate.
Amicus Curiae: Hafiz Tariq Naseem, Advocate

MUHAMMAD SAJID MEHMOOD SETHI, J./MEMBER:-

Through instant appeal, notification dated 31.01.2001 and order dated 23.04.2004, passed by the respondent have been assailed, whereby major penalty of dismissal from service was imposed upon the appellant and his representation/review petition was also dismissed.

2. Brief facts are that upon complaint of the Chairman, Board of Intermediate & Secondary Education, Gujranwala, the appellant during his posting as Civil Judge-cum-Judicial Magistrate, Gujranwala, was ordered to be proceeded against under the provisions of the Punjab Civil Servants (Efficiency & Discipline) Rules, 1999 (“**the Rules of 1999**”) and the learned District & Sessions Judge, Lahore was appointed as Inquiry Officer. The charge sheet against the appellant was as under:-

1. That the accused/officer committed acts of impersonation and cheating by appearing in Intermediate Examination (Spring) 1987 and Intermediate Examination (Spring) 1988 under Roll No.14787 of the Board of Intermediate and Secondary Education, Gujranwala (here-in-after called the Board)

in place of elder brother namely, Muhammad Shafique son of Muhammad Ibrahim.

2. That he stamped the above acts of impersonation and cheating subsequently in his capacity as Civil Judge, Gujranwala by attesting National Identity Card of his brother Muhammad Shafique bearing No.205-93-209924, copy of his Intermediate Examination Result Card bearing No.009660 appended with the application submitted in November, 1993 for obtaining duplicate Certificate of Intermediate Examination, with his own photograph affixed on the said application.
3. That the conduct of the accused/officer was unbecoming of Judicial Officer.

The appellant filed reply to the charge sheet by denying the charges, however, admitted that he attested the Result Card. After recording evidence, Inquiry Officer submitted report dated 03.06.2000, whereby he concluded that all the charges stood proved against the appellant. Thereafter, show cause notice dated 24.06.2000 alongwith copy of the report requiring explanation from the appellant as to why penalty of dismissal from service may not be imposed against him was issued. The appellant tendered explanation. Personal hearing was also afforded to the appellant and thereafter the Authorized Officer opined that the appellant was not fit to be retained in judicial service and proposed major penalty of dismissal from service. Thereafter, final show cause notice dated 06.12.2000 was served upon the appellant to which he tendered explanation. The appellant was afforded personal hearing and the competent authority imposed major penalty of dismissal from service vide notification dated 31.01.2001. Feeling aggrieved, the appellant filed departmental representation/appeal, which was also dismissed vide order dated 23.04.2004. Hence, this appeal.

3. Learned counsel for the appellant submits that charge of impersonation was not proved but the Inquiry Officer as well as the competent authority has committed sheer misreading and non-reading of evidence brought on record. Adds that even otherwise, allegation of impersonation belongs to the period much prior to the appellant's appointment as Judicial Officer,

thus, he could not have been put to face rigors of disciplinary proceedings but this aspect of the matter has been overlooked by the Inquiry Officer. Further submits that inquiry proceedings were concluded much beyond the stipulated period provided under the law. In the end, he submits that impugned orders are unsustainable in the eye of law.

Learned *amicus curiae* has supported the arguments of learned counsel for the appellant, however, frankly concedes that inquiry cannot be held to be vitiated straightaway merely on the ground that it is not concluded within prescribed time, rather it depends upon facts and circumstances of each case and it is to be seen whether any prejudice was caused. He has relied upon Atta Muhammad Quresht v. The Settlement Commissioner, Lahore Division, Lahore and 2 others (PLD 1971 Supreme Court 61), Mansab Ali v. Amir and 3 others (PLD 1971 Supreme Court 124), Pakistan Defence Officers' Housing Authority and others v. Lt. Col. Syed Jawaid Ahmed (2013 SCMR 1707), Director General, FIA and others v. Kamran Iqbal and others (2016 SCMR 447) and Province of Punjab through Conservator of Forest, Faisalabad and others v. Javed Iqbal (2021 SCMR 328).

4. On the other hand, learned counsel for respondent submits that the appellant impersonated his real brother by appearing twice in Intermediate Examinations, hence, result card was issued in favour of the appellant's brother. He submits that while submitting application form for duplicate certificate, the appellant admittedly affixed his own photograph thereon and also attested Identity Card being a Judicial Officer, therefore, he perpetuated his earlier acts of impersonation and cheating, unbecoming of a civil servant. In the end, he submits that impugned orders, having been passed in accordance with law, are liable to be upheld.

5. Arguments heard. Available record perused.

6. Perusal of record shows that as many as seven witnesses were got examined by the department. Muhammad Ashraf / PW-1 stated that during checking it was found that signatures on application form for duplicate certificate of Intermediate Certificate Spring 1988, were different from signatures available on admission forms; that identification mark of the candidate given on the Identity Card was different from identification mark given on admission forms; that both sides of the Identity Card were attested by a Civil Judge, Gujranwala and signatures on the Identity Card were similar to signatures on the admission form; that some of the signatures on the attendance sheets were also different from each other to some extent, however, some signatures were similar to those available on admission form and signatures of the Civil Judge on the Identity Card. Muhammad Bashir / PW-2 stated that by the order of Chairman, BISE, he was entrusted inquiry against Muhammad Shafique; that he collected evidence and arrived at the conclusion that Muhammad Shabbir Ahmad Minhas, Civil Judge, Gujranwala, acted as impersonator of his elder brother, namely, Muhammad Shafique in both the Intermediate Examinations held in Spring, 1987 and Spring, 1988. Muhammad Ismail / PW-4 deposed that he attested the application form which was presented before him by the person whose photograph was available on the application and same belonged to the appellant. Ubaid Ullah Sindhu / PW-5 deposed that he attested the admission form of Muhammad Shafique; that contents of the application form were verified by the Office Clerk on the basis of documents annexed with the form. Shabbir Akhtar / PW-6 stated that he attested the admission form of Muhammad Shafique on the basis of documents produced before him.

Muhammad Shafique, the appellant's brother, was examined as CW-1 and he admitted that photographs affixed on the admission forms were not his photographs. During hearing

before the Authorized Officer, the appellant admitted that his photograph was available on the application form and he also admitted his signatures on the Identity Card as well as on the result card of his brother.

Though the appellant appeared as his own witness in his defence and produced Muhammad Ashraf Malik, Handwriting Expert as DW-1, Rana Masood Alam as DW-2 and Zaka Ullah as DW-3, but could not rebut the charges, discard the evidence brought on record and prove his innocence.

7. From the oral evidence and documents tendered in evidence, it was established that the appellant had appeared in place of his brother, namely, Muhammad Shafique, in Intermediate Examinations held in 1987 and 1988 by affixing his own photographs. The application form with photograph of the appellant was submitted for obtaining duplicate certificate in the name of the appellant's brother. The Identity Card and result card of Intermediate Examination Spring, 1988 were also attested by the appellant. The signatures on application form, Identity Card and result card were of the same person i.e. the appellant, which were also found to have resemblance with signatures on charge relinquishment report. It seems that in order to cover his previous acts, the appellant affixed his photograph on the application form and also attested copies of Identity Card and result card of his brother. No malice has been attributed to the witnesses, who supported the charges leveled against the appellant. In the circumstances, the above charges stood proved and penalty of dismissal from service was rightly imposed.

8. So far as argument of learned counsel for the appellant that impersonation was committed prior to the appellant's entry in judicial service, therefore, major penalty of dismissal from service could not have been imposed, suffice it to say that not only the appellant committed act of impersonation by appearing in aforesaid examinations in place of his elder brother

Muhammad Shafique but subsequently he stamped the said impersonation and cheating by making attestation in his capacity as Civil Judge on various documents including Identity Card and result card, which were annexed with the application form for issuance of duplicate certificate whereon photograph of the appellant instead of Muhammad Shafique was affixed. The available record / documents clearly suggested that the appellant was guilty of the charges and ultimately, his brother was disqualified to appear in next six examinations and his result card was also cancelled.

In case reported as Rizwana Altaf v. Chief Justice, High Court of Sindh through Registrar (2020 PLC (C.S.) 1244), the petitioner therein, before her selection in the Sindh Judicial Service, was working in the Education Department as a school teacher. In the meanwhile, she got herself enrolled as an advocate and subsequently, appeared in the exam for the post of Civil Judge. She was ultimately selected as a Civil Judge. After becoming a Judge, for some time, she even drew salary from the Education Department. When said facts came to light, the Hon'ble Sindh High Court dispensed with her services. Even the august Supreme Court upheld the decision of her removal from service. Every act of misconduct committed by the petitioner of that case had stemmed from her concealment of her government job and thereby getting a license to practice as an advocate. No doubt, she had committed that act before her entry into the Sindh Judicial Service, yet her mistake was not brushed aside merely because of said reason.

William Wordsworth in his famous poem "**My Heart Leaps Up**" has written that "**Child is father of the man**", implying that a man is the product of his habits and behaviour developed in youth. This is not merely an idiom but a reality of life. Evil ways get deeply seated in those who fall prone to them in early stages of their life, making it almost impossible for them to let the wickedness go. Ideally a Judge should be above

any fault of character, otherwise the little semblance of justice we find in the society will give way to total chaos.

In these circumstances, this argument of learned counsel for the appellant has no force and is repelled.

9. It is further argued by learned counsel for the appellant that inquiry proceedings were required to be completed within a period of 60-days commencing from last date of submission of written defence by the accused or within such further period as may be allowed by the authority in the light of Rule 7(6) or within 90-days from the date of receipt of direction under rule 5, as required under rule 9(2) of the Rules, 1990, therefore, inquiry proceedings stood vitiated.

Under the Rules of 1999, no effect has been prescribed where the inquiry proceedings are not concluded within the period of 90 days. In the case reported as Raja Muhammad Shafique Javaid v. Lahore High Court through Registrar (2005 P L C (C.S.) 1015), the Punjab Subordinate Judiciary Service Tribunal, Lahore, although noted that disciplinary proceedings had remained pending against the judge for a period of 7 years, but did not declare the proceedings void or illegal merely on that ground.

In Balvantaray Ratilal Patel v. State of Maharashtra (1968 AIR (SC) 800), the appellant, a Medical Doctor, was dismissed from service on the finding of the Inquiry Officer who took eight years to conclude the inquiry. The appellant, in the meanwhile, filed suit against the order of his suspension, which was decreed by learned Single Judge. However, learned Division Bench of the High Court set aside the decree and dismissed the suit as being not maintainable. The Supreme Court of India despite being aware of the delay in conclusion of the inquiry and dismissal of the appellant after 08-years, never set the dismissal aside because the inquiry was finalized after such a long delay.

In Kamleshbhai B. Mehta v. Registrar, High Court of Gujarat, [2004 (3) GLR 2290], petitioner claimed that the delay in concluding the inquiry proceedings had prejudiced him, therefore, it had vitiated the inquiry proceedings. Learned Division Bench of Gujarat High Court rejected the claim with the observation that no material was presented to demonstrate how it had prejudiced the petitioner in the conduct of the departmental inquiry.

In Additional Superintendent of Police v. T. Natarajan, [1998 (7) S.L.R. 403], Supreme Court of India held that it is settled law that mere delay in initiating proceedings would not vitiate the enquiry unless the delay results in prejudice to the delinquent officer. In Abdul Rehman Antulay v. R.S. Nayak, [1992 AIR (SC) 1701], the Supreme Court of India observed that each delay does not necessarily prejudice the accused.

10. We have perused the record of inquiry proceedings, which shows that no material has been placed on record to establish that any prejudice is caused to the appellant due to the delay in conclusion of inquiry proceedings. Even otherwise, delay in conclusion of inquiry is contributory on the part of appellant as the proceedings were adjourned on the request of the appellant due to his absence on as many as 9 dates of hearing. In the light of un-rebutted robust documentary evidence available on record, including the internal preliminary inquiry conducted by BISE, Gujranwala, the charges against the appellant stood proved beyond any iota of doubt. Even otherwise, when there is sufficient documentary evidence available, regular inquiry could be dispensed with to secure expeditious conclusion of departmental proceedings after confronting the delinquent officer with the available evidence and providing him an opportunity to explain his position. Reference can be made to Deputy Inspector-General Investigation, Lahore v. Asghar Ali (2011 SCMR 138),

Hassan Raza v. Federal Board of Revenue through Chairman and others (2020 SCMR 994) and Chief Postmaster Faisalabad, GPO and another v. Muhammad Afzal (2020 SCMR 1029).

11. In view of the above, this appeal, being without any merit, is hereby **dismissed**.

(Mirza Viqas Rauf) (Muhammad Sajid Mehmood Sethi)
Chairman Member

(Sardar Muhammad Sarfraz Dogar)
Member

APPROVED FOR REPORTING

Member

Sultan